

July 10, 2026, Civil Law & Motion Tentative Rulings

1. CU0001483 Susan Gabrielle, Formerly Known as Susan G. Turner-Conlon vs. Phillip G. Conlon, Jr.

Appearances required by the parties to discuss the status of the sale or refinancing of the property.

2. CL0003307 Wells Fargo Bank, N.A. vs. Lori Arlene Mitchell, an individual

Defendant's motion for summary judgment is dropped as moot in light of the dismissal entered on April 27, 2026.

3. CU0000090 Palleschi, Matthew et al v. Daniel Fraiman Construction, Inc. et al

Appearances required by all parties to update the Court as to the status of the discovery motions continued to July 10, 2026. The parties were ordered to meet and confer further, and submit a joint status report by June 26, 2026. The Court received a one-sided status report and various emails between counsel. The Court requires appearances to determine where the discovery issues stand. Per Counsel's Joint Status Report, the discovery issue between Artisan and Plaintiff is resolved.

4. CU0001849 Gregory Thrush vs. Jose Antonio Valdovinos

Motion to Reset Trial or CMC Dates

Due to the dismissal of Defendant's bankruptcy action, and thus the stay that was entered on January 14, 2026 is no longer in effect, the Court sets a further Case Management Conference for August 10, 2026, at 9:00 a.m. in Department 6.

Motion for Leave to File Second Amended Complaint

Plaintiff Gregory Thrush's motion for leave to file verified second amended complaint is granted.

Legal Standard

The Court may, in its discretion and after notice to the adverse party, allow an amendment to any pleading. Code Civ. Proc., § 473(a)(1). "The discretionary power to allow amendments to the pleadings ... must be exercised liberally at all stages of the proceeding" and is usually exercised in favor of allowing amendments. *Edwards v. Superior Court* (2001) 93 Cal.App.4th 172, 180. Additionally, "[t]he policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." *Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428. However, leave to amend may be properly denied if there is an unwarranted delay in seeking the relief and where the opposing party demonstrates that it will incur prejudice as a result. *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761. Unreasonable delay alone does

not justify denying leave to amend and the opposing party must also demonstrate prejudice. *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.

A motion to amend a pleading must include a copy of the proposed amendment or amended pleading which must be serially numbered to differentiate it from previous pleadings or amendments and must state what allegations in the previous pleading are proposed to be deleted or added, if any, and where, by page, paragraph, and line number, the allegations are located. California Rules of Court, rule 3.1324(a). The motion shall also be accompanied by a declaration attesting to the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. California Rules of Court, rule 3.1324(b).

Analysis

The court finds Plaintiff has sufficiently demonstrated he is entitled to the relief sought.

Plaintiff attaches his Second Amended Complaint to motion as required by Cal. Rules of Court, Rule 3.1324(a). Not. of Mot., Ex. 1. The notice of motion details where the allegations to be added/removed are located in the proposed Second Amended Complaint. Not. of Mot. Plaintiff states the factual allegations in the Complaint which are proposed to be added. Auerbach Decl., ¶¶ 16-19, 21-27, 29. Plaintiff also states the claims for damages which have been amended. Auerbach Decl., ¶¶ 28, 39. Plaintiff explains the purpose of the amendments is to add factual allegations, update Plaintiff's damages claim, correct inadvertent and clerical errors, add a new cause of action, eliminate two other causes of action, restructure claims for clarity, and add a verification. Mot. at 1:25-2:3. Plaintiff's counsel declares that while some of the proposed changes could have been made earlier, for the sake of judicial economy and due to the ongoing nature of his investigation he believed filing an omnibus motion to amend incorporating all the proposed revisions would be more provident. Auerbach Decl., ¶ 15. The need for amendment to the damages claim was identified because of Plaintiff's counsel's investigation efforts, Defendant's deposition testimony, and interviews of third-party witnesses. ¶¶ 16-19, 21-27, 29. Plaintiff's counsel provided Defendant, who is presently appearing pro per in the action, with a copy of the proposed Second Amended Complaint on March 13, 2026, and filed the present motion on March 25, 2026. Auerbach Decl., ¶ 48, Ex. 1.

The requirements of California Rules of Court, Rule 3.1324(a)-(b) are satisfied. Requests to amend pleadings are to be liberally considered. No trial date has been set and the motion is unopposed. Accordingly, the court finds no prejudice to Defendant. Moreover, the delay in seeking to amend is not unreasonable given the date of discovery conducted leading to the amendments as well as the bankruptcy stay which was only lifted on March 17, 2026. Auerbach Decl., ¶ 45. Thus, Plaintiff's motion for leave to amend is granted. Plaintiff is to file his second amended complaint within 10 days.

4. CU0002516 Karen Mingle et al vs. James Tessmann

Court approval is required for all settlements of a minor's claim. Probate Code §§ 3500, 3600, *et seq.*; Code Civ. Proc. § 372.